

RECEIVED

JUN 17 2013

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORKLOPETTA A. PRESKA
CHIEF U.S. DISTRICT JUDGE
S.D.N.Y.ABRAHAM CUCUTA,USDC SDNY
DOCUMENT
ELECTRONICALLY FILED
DOC#DATE FILED 6-17-2013

COMPLAINT

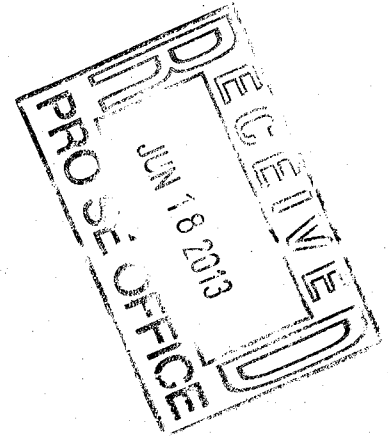
13 CIV.558 (LAP)

(In the space above enter the full name(s) of the plaintiff(s).)

-against-

NEW YORK CITY ~~DEPARTMENT OF POLICE~~, MANHATTAN
NORTH NARCOTICS DETECTIVES FRICK ORNL, ABEL
JOSEPH CARPENTER SERGEANT NEFTALI BETANCES,
LIEUTENANT ANTHONY RUSSA, CAPTAIN KEVIN GADSDAY,
POLICE OFFICER WINSTON FAVIS, AKAASANTER AUSA
RYAN P. POSCABLO,
JOHN DOES 1-5, INDIVIDUALLY AND IN THEIR
OFFICIAL CAPACITY,Jury Trial: ☒ Yes ☐ No
(check one)

(In the space above enter the full name(s) of the defendant(s). If you cannot fit the names of all of the defendants in the space provided, please write "see attached" in the space above and attach an additional sheet of paper with the full list of names. The names listed in the above caption must be identical to those contained in Part I. Addresses should not be included here.)



I. Parties in this complaint:

- A. List your name, address and telephone number. If you are presently in custody, include your identification number and the name and address of your current place of confinement. Do the same for any additional plaintiffs named. Attach additional sheets of paper as necessary.

Plaintiff Name ABRAHAM CUCUTA, REG. NO. 64974-054
Street Address P.O. BOX 2000
County, City ALLENWOOD, WHITE DEER
State & Zip Code PENNSYLVANIA 17887
Telephone Number _____

- B. List all defendants. You should state the full name of the defendant, even if that defendant is a government agency, an organization, a corporation, or an individual. Include the address where each defendant may be served. Make sure that the defendant(s) listed below are identical to those contained in the above caption. Attach additional sheets of paper as necessary.

Defendants No. 1

Name LT ANTHONY RONDA, CAPT. KEVIN RADDAY, A.U.S.A. RYAN ROSCABLO,
ERICK ORTIZ, ABEL JOSEPH, CARPENTER, NEFTALI BETANCES,
 Street Address WINSTON FAVIS, AGUAYANTE, JOHN DOES 1-5, NEW YORK CITY,
1 POLICE PAAZ
 County, City NEW YORK, NEW YORK
 State & Zip Code NEW YORK 10038
 Telephone Number _____

Defendant No. 2

Name _____
 Street Address _____
 County, City _____
 State & Zip Code _____
 Telephone Number _____

Defendant No. 3

Name _____
 Street Address _____
 County, City _____
 State & Zip Code _____
 Telephone Number _____

Defendant No. 4

Name _____
 Street Address _____
 County, City _____
 State & Zip Code _____
 Telephone Number _____

II. Basis for Jurisdiction:

Federal courts are courts of limited jurisdiction. Only two types of cases can be heard in federal court: cases involving a federal question and cases involving diversity of citizenship of the parties. Under 28 U.S.C. § 1331, a case involving the United States Constitution or federal laws or treaties is a federal question case. Under 28 U.S.C. § 1332, a case in which a citizen of one state sues a citizen of another state and the amount in damages is more than \$75,000 is a diversity of citizenship case.

A. What is the basis for federal court jurisdiction? (check all that apply)

☒ Federal Questions☐ Diversity of CitizenshipB. If the basis for jurisdiction is Federal Question, what federal Constitutional, statutory or treaty right is at issue? SEARCH AND SEIZURE, DUE PROCESS, EQUAL PROTECTION

C. If the basis for jurisdiction is Diversity of Citizenship, what is the state of citizenship of each party?

Plaintiff(s) state(s) of citizenship _____

Defendant(s) state(s) of citizenship _____

III. Statement of Claim:

State as briefly as possible the facts of your case. Describe how each of the defendants named in the caption of this complaint is involved in this action, along with the dates and locations of all relevant events. You may wish to include further details such as the names of other persons involved in the events giving rise to your claims. Do not cite any cases or statutes. If you intend to allege a number of related claims, number and set forth each claim in a separate paragraph. Attach additional sheets of paper as necessary.

A. Where did the events giving rise to your claim(s) occur? 1952 SECOND AVENUE, APARTMENT 301, NEW YORK, NEW YORK 10019

B. What date and approximate time did the events giving rise to your claim(s) occur? APRIL 13TH, 2011, AT 12:30 PM.

C. Facts: SEE ATTACHED PAGES 4 AND 5.

What happened to you?

Who did what?

Was anyone else involved?

Who else saw what happened?

IV. Injuries:

If you sustained injuries related to the events alleged above, describe them and state what medical treatment, if any, you required and received.

III. C. FACTS: 1) TAMIKA TAYLOR IS PLAINTIFF'S GIRLFRIEND, SHE RESIDES WITH HER FAMILY AT 1952 SECOND AVENUE, APARTMENT #301, NEW YORK, NEW YORK 10029.

2) PLAINTIFF KEPT SOME PERSONAL ITEMS SUCH AS CLOTHING, SHOES, AND OTHER THINGS, AT HIS GIRLFRIEND'S HOME AND WOULD SOMETIMES SLEEP OVER.

3) IT WAS UNDERSTOOD THAT NO-ONE WOULD TAMPER WITH PLAINTIFF'S BELONGINGS UNLESS GRANTED PERMISSION BY PLAINTIFF OR HIS GIRLFRIEND, GIVING PLAINTIFF AN EXPECTATION OF PRIVACY IN THE HOME.

4) ON APRIL 13TH, 2011, AT APPROXIMATELY 12:30 PM, PLAINTIFF'S GIRLFRIEND WAS HOME WITH HER BROTHER ANDRE MONTGOMERY, FAMILY FRIEND ADAM HOGAN, AND HER THREE YEAR OLD SON (ALL OCCUPANTS).

5) NEW YORK CITY POLICE DEPARTMENT MANHATTAN NORTH NARCOTICS DETECTIVES ERICK ORTIZ, LIAM MCLAUGHLIN, ABEL JOSEPH, SERGEANT NEFTALI BETANCES, CARPENTER, ~~AND OTHERS~~ LIEUTENANT ANTHONY RONDA, CAPTAIN KEVIN RADDAY, ~~AND OTHERS~~ POLICE OFFICER WINSTON FAVIS, AGUASANTE, AND JOHN DOES 15, AFTER ILLEGALLY PINNING PLAINTIFF'S CELL PHONE KNOCKED ON PLAINTIFF'S GIRLFRIEND'S DOOR, CONFIRMED THAT MS TAYLOR WAS PLAINTIFF'S GIRLFRIEND, INFORMED HER THAT PLAINTIFF DEFENDANT RONDA HAD JUST BEEN ARRESTED, AND LIED THAT THEY WANTED TO GIVE HER HIS PROPERTY AS A RUSE SO THAT SHE WOULD OPEN THE DOOR.

6) IN RESPONSE, MS TAYLOR OPENED THE DOOR TO STEP OUT INTO THE HALWAY, HOWEVER, ~~THE~~ DEFENDANTS ^{RONDA AND RADDAY} STEPPED PASTED HER ~~AND ENTERED~~ THE APARTMENT, FOLLOWED BY THE OTHER DEFENDANTS.

7) THE DEFENDANTS DID NOT REQUEST PERMISSION TO ENTER AND NONE WAS GIVEN.

8) ONCE INSIDE, ~~THE~~ DEFENDANTS ^{RONDA} STATED THEY HAD INFORMATION THAT THERE WAS A RIFLE IN THE APARTMENT, FROZE THE APARTMENT, FALSELY CLAIMED THEY WERE GETTING A SEARCH WARRANT, AND DID NOT ALLOW THE OCCUPANTS TO GO ANYWHERE.

9) ALL DEFENDANTS THEN REFUSED TO COMPLY WITH MR MONTGOMERY'S REQUESTS TO WAIT OUTSIDE IN THE HALWAY IF THEY DID NOT PRESENTLY HAVE A SEARCH WARRANT AND FORCED ALL THE OCCUPANTS TO STAY PUT AND NOT LEAVE THE APARTMENT.

10) DEFENDANT RONDA TOOK MS TAYLOR'S PHONE AND INFORMED HER THAT ~~THEY WERE GOING TO SEARCH THE APARTMENT FOR A RIFLE~~

SHE ~~COULD~~ NOT ~~MAKE~~ ANY CALLS.

11) ~~AND~~ MS TAYLOR ATTEMPTED TO TEND TO HER SON IN A BEDROOM. DEFENDANT ~~ORTEL~~ RADDAY RESTRAINED AND HANDCUFFED HER AND HER BROTHER.

12) ALL DEFENDANTS THEN BEGAN SEARCHING HER AND HER BROTHER'S BEDROOMS.

13) DEFENDANT ORTEL THEN ENTERED MR HOLAN'S ROOM, PULLED HIS COVERS OFF HIM (HE WAS IN BED) AND HANDCUFFED HIM.

14) ALL OCCUPANTS WERE THEN REMOVED FROM THE APARTMENT AND HELD IN THE HALLWAY.

15) WHILE IN THE HALLWAY DRAWERS AND DOORS COULD BE HEARD BEING OPENED AND CLOSED AS ~~ALL~~ THE DEFENDANTS ILLEGALLY SEARCHED THE PREMISES.

16) PERMISSION FOR THE WARRANTLESS SEARCH WAS NEVER GIVEN BY ANYBODY. TACTICAL PLAN

17) PRIOR TO THE SEARCH THERE WAS A ~~MEETING~~ ^{MEETING} BY THE NAMED DEFENDANTS WITH ~~DEFENDANT~~ POSCABLO WHERE AN AGREEMENT WAS MADE THAT IF PLAINTIFF'S RESIDENCE HAD BEEN DETERMINED THE APARTMENT WOULD BE SECURED AND SEARCHED.

18) IT IS PART OF THE POLICY, CUSTOM, AND PRACTICE OF ~~THE~~ THE CITY OF NEW YORK FOR ~~THE~~ THE ABOVE NAMED DEFENDANTS AS PART OF THEIR TACTICAL PLANS WHEN THEY GO OVER A CASE TAKEDOWN IF A PREMISES IS SECURED OF SUBJECTS - TO SPEAK TO DEFENDANT ~~POSCABLO~~ POSCABLO TO SEARCH FOR FIREARMS AND CONTRABAND EVIDENCE.

19) THERE WAS NO ARREST WARRANT FOR ANY OF THE OCCUPANTS.

20) DEFENDANTS JOSEPH AND POSCABLO THEN TRIED TO COVER-UP THE ILLEGAL SEARCH AND SEIZURE BY SECURING A WARRANT WITH ~~SWORN~~ ^{SWORN} TO FALSITIES BY DEFENDANT JOSEPH APPROXIMATELY FIVE HOURS AFTER THE ILLEGAL SEARCH AND SEIZURE.

21) THE SECURED WARRANT WAS NEVER ACTED ON SINCE THE SEARCH AND SEIZURE HAD ALREADY OCCURRED EARLIER.

V. Relief:

State what you want the Court to do for you and the amount of monetary compensation, if any, you are seeking, and the basis for such compensation. \$1,000,000 IN ^{NOMINAL} MONETARY, COMPENSATORY, AND PUNITIVE DAMAGES

I declare under penalty of perjury that the foregoing is true and correct.

Signed this 7TH day of JUNE, 2013.

Signature of Plaintiff

Alphonse Lamb

Mailing Address

REG. NO. 64974-054
F.C.I. ALLENWOOD
P.O. BOX 2000, WHITE DEER, PA 17887

Telephone Number

Fax Number (if you have one)

Note: All plaintiffs named in the caption of the complaint must date and sign the complaint. Prisoners must also provide their inmate numbers, present place of confinement, and address.

For Prisoners:

I declare under penalty of perjury that on this 7TH day of JUNE, 2013, I am delivering this complaint to prison authorities to be mailed to the Pro Se Office of the United States District Court for the Southern District of New York.

Signature of Plaintiff:

Alphonse Lamb

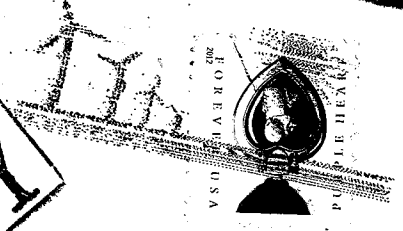
Inmate Number

64974-054

ABRAHAM CULTA, 64974-054
FCI ALLENWOOD
P.O. BOX 2000
WHITE DEER, P.A. 17887

HARRISBURG PA 171

JUN 10 2013 14:51



CHIEF JUDGE LORETTA
U.S.D.C., S.D.N.Y.
500 PEARL ST.
N.Y., N.Y. 10007

US MAIL
SDNY

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